

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
ERICK TAVAREZ,

Plaintiff,

- against -

CITY OF NEW YORK, POLICE OFFICER HENRY
YANEZ, SHIELD No. 17147, and SGT. STEVEN
CAMERON,

Defendants.
-----X

Index No:
Date Filed:

SUMMONS

Plaintiff designates
County of KINGS
as the place of trial

Plaintiff resides at:
279 Tompkins Avenue, Apt. 4L,
Brooklyn, NY 11216

The basis of venue:
CPLR § 504 (3).

To the Above Named Defendants:

YOU ARE HEREBY SUMMONED to answer the Verified Complaint in this action and to serve a copy of your Answer, or, if the Complaint is not served with this Summons, to serve a Notice of Appearance on the Plaintiffs attorney within 20 days after the service of the Summons, exclusive of the day of service, or within 30 days after the service is complete if this Summons is not personally delivered to you within the State of New York; and in the event of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the notice set forth below and in the within Verified Complaint.

Date: Bronx, New York
 August 16, 2019

THE BAGLEY FIRM, P.C.
Attorneys for Plaintiff
391 E 149th Street, Suite 205A
Bronx, New York 10455
Tel: (718) 705-7999
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By: 
NICOLAS BAGLEY, ESQ.

TO: ZACHARY W. CARTER, ESQ.
Corporation Counsel of City Of New York 100 Church Street
New York, NY 10007

POLICE OFFICER HENRY YANEZ, SHIELD NO. 17147
1 Police Plaza
New York, NY 10038

SGT. STEVEN CAMERON
1 Police Plaza
New York, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
ERICK TAVAREZ,

Index No:

Plaintiff,

- against -

COMPLAINT

CITY OF NEW YORK, POLICE OFFICER HENRY
YANEZ, SHIELD No. 17147, and SGT. STEVEN
CAMERON

Defendants.
-----X

Plaintiff, **ERICK TAVAREZ**, by his attorneys, THE BAGLEY FIRM, P.C., complaining of the defendants, respectfully shows to this Court and alleges the following, upon information and belief:

1. That at all times the Plaintiff **ERICK TAVAREZ** was and is a resident of County of KINGS, City and State of New York.

2. That at all times hereinafter mentioned, the defendant, CITY OF NEW YORK, hereinafter referred to as "CITY", was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.

3. That at all times hereinafter mentioned, the defendant, POLICE OFFICER HENRY YANEZ, SHIELD #17147, hereinafter referred to as "YANEZ", was and is a police officer employed by the defendant CITY, and at all times herein was acting in such capacity as the agent, servant and employee of the CITY.

4. That at all times hereinafter mentioned, the defendant, SGT. STEVEN CAMERON, hereinafter referred to as "CAMERON", was and is a police officer employed by the

defendant CITY, and at all times herein was acting in such capacity as the agent, servant and employee of the CITY.

5. Upon information and belief, that at all times hereinafter mentioned, several police officers were on duty and in the vicinity of Lindsay Park between Lorimer Street and Montrose Avenue, Brooklyn, NY, 11211.

6. Upon information and belief, that at all times hereinafter mentioned, the above-referenced Police Officers were acting within the scope of their employment and under the direction of the CITY, as its agents, servants and/or employees.

7. Upon information and belief, defendants YANEZ and CAMERON were assigned to the 90th Precinct.

8. That on and prior to all dates and times hereinafter mentioned YANEZ and CAMERON were hired, screened, tested, interviewed, trained, retrained, investigated, monitored and supervised by the CITY.

9. That at all times hereinafter mentioned, YANEZ and CAMERON individually and/or collectively were acting pursuant to and under the rules and regulations of the New York City Patrol Guidelines.

10. That at all times hereinafter mentioned, Plaintiff **ERICK TAVAREZ** was lawfully in the vicinity of Lindsay Park between Lorimer Street and Montrose Avenue, Brooklyn, NY, 11211, and doing nothing illegal, unlawful or improper, or acting suspiciously in any way.

11. That at all times hereinafter mentioned, in the vicinity of Lindsay Park between Lorimer Street and Montrose Avenue, Brooklyn, NY, 11211, DEFENDANTS, absent an arrest warrant, probable cause, reasonable cause or any legal justification whatsoever, approached Plaintiff **ERICK TAVAREZ** for no reason and based solely on fraud, perjury and

misrepresentations, and summarily stopped, searched, grabbed, assaulted, battered, and detained him in an aggressive and excessive manner.

12. Upon information and belief, YANEZ and CAMERON knew or had reason to know that his actions lacked any legal justification in approaching, searching, seizing and arresting Plaintiff **ERICK TAVAREZ** and said actions were based on fraud, perjury and misrepresentations.

13. That at all times hereinafter mentioned, Plaintiff **ERICK TAVAREZ** remained incarcerated for periods of detainment of approximately five (5) years and seven (7) months.

14. Thereafter, at all times hereinafter mentioned, Plaintiff **ERICK TAVAREZ** was arraigned and subsequently falsely and maliciously prosecuted, without having committed any crime, and was required to make numerous court appearances over an extended period of time until all charges against him were terminated favorably.

15. Plaintiff **ERICK TAVAREZ** sustained physical and emotional pain and injuries as a result of these incidents.

16. On August 21, 2018, and within ninety (90) days after the claims herein arose, and more than thirty (30) days prior to the commencement of this action, the Plaintiff **ERICK TAVAREZ** caused the Notice of Claim, setting forth in writing and sworn to by and on behalf of the claimant, the Plaintiff herein, containing a statement of claimant's name and place of residence, by the street and number, listing his attorney, and describing the time, place, nature and circumstances in which the damages and injuries were sustained, the cause thereof, and so far as practical, the nature and extent of the injuries, to be served upon the defendant CITY, their agents, servants and/or employees at the New York City Law Department.

17. This action is being commenced within one (1) year and ninety (90) days after the happening of the events upon which the claims is based.

18. For more than thirty (30) days prior to the commencement of this action, defendant CITY neglected, refused and failed to make an adjustment of said claim, and said claim remains unadjusted and unpaid, although Plaintiff herein has requested and demanded that the same be paid and adjusted.

19. That the defendants requested oral examinations pursuant to General Municipal Law Section 50-h and that said requests were complied with on November 26, 2018.

**AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF PLAINTIFF ERICK
TAVAREZ**

20. Plaintiff **ERICK TAVAREZ** repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "19" with the same force and effect as if fully set forth at length herein.

21. That on or about December 5, 2011, at approximately 5:00 p.m., the Plaintiff **ERICK TAVAREZ** was without just cause, probable cause or provocation, and with reckless, negligent and callous disregard for the truth and without investigation, touched, grabbed, handcuffed, seized and arrested in an excessive manner and with excessive force by CITY, YANEZ, CAMERON, their agents, servants and/or employees.

22. That on or about December 5, 2011, at approximately 5:00 p.m., the Plaintiff **ERICK TAVAREZ** while lawfully in the vicinity of Lindsay Park between Lorimer Street and Montrose Avenue, Brooklyn, NY, 11211, was without just cause, probable cause or provocation, maliciously, intentionally and falsely accused by CITY, YANEZ, and CAMERON of having committed a crime.

23. That on or about December 5, 2011, and upon arresting the Plaintiff **ERICK TAVAREZ** and depriving him of his liberty, CITY, YANEZ, and CAMERON entered the Plaintiff **ERICK TAVAREZ** on the records as under arrest.

24. That on or about December 5, 2011, the CITY, YANEZ, and CAMERON further caused Plaintiff **ERICK TAVAREZ** to be fingerprinted and photographed without his consent, and in accordance with police procedures for the arrest of criminals, and held him on various criminal charges at various police stations, correctional facilities and the Courthouse located in the County of Kings and State of New York.

25. That on or about December 5, 2011, Plaintiff **ERICK TAVAREZ** was aware of his arrest and confinement and did not consent to his arrest and confinement; and that said arrest, confinement, seizure and detainment was without legal justification.

26. That at all times hereinafter mentioned, the actions of CITY, YANEZ, AND CAMERON as described above, were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

27. That by reason of the foregoing, Plaintiff **ERICK TAVAREZ** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF PLAINTIFF ERICK TAVAREZ

28. Plaintiff **ERICK TAVAREZ** repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "27" with the same force and effect as if fully set forth at length herein.

29. That on or about December 5, 2011, a criminal complaint was issued by the CITY, YANEZ, AND CAMERON, their agents, servants and/or employees, without probable cause,

reasonable cause or legal justification, and that said complaint was filed based on fraud, perjury and misrepresentations.

30. That on or about December 5, 2011, a criminal action against Plaintiff **ERICK TAVAREZ** was commenced by CITY, YANEZ, CAMERON, their agents, servants and/or employees, without probable cause, reasonable cause or legal justification.

31. That solely as a result of the aforementioned actions and conduct, the Plaintiff **ERICK TAVAREZ**'s life was interfered with.

32. That the criminal action commenced against Plaintiff **ERICK TAVAREZ** was continued for an extended period of time by defendants with malice and bad faith.

33. That solely as a result of the false arrest, assault, battery, false imprisonment and malicious prosecution of the Plaintiff **ERICK TAVAREZ**, he was deprived of his liberty for an extended period of time and was subjected to scorn, ridicule and embarrassment, and was degraded in the esteem of the community, both personally and professionally.

34. That the criminal action against Plaintiff **ERICK TAVAREZ** was terminated favorably on May 23, 2018.

35. That the actions of CITY, YANEZ, and CAMERON, as described above, were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

36. That by reason of the foregoing, Plaintiff **ERICK TAVAREZ** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF PLAINTIFF ERICK TAVAREZ

37. Plaintiff **ERICK TAVAREZ** repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "36" with the same force and effect as if fully set forth at length herein.

38. That on or about December 5, 2011, and while in the custody of the defendants in the County of Kings and State New York, the Plaintiff **ERICK TAVAREZ** was intentionally touched, pushed, assaulted, battered, violated, humiliated, photographed and handcuffed by the CITY, YANEZ, and CAMERON who were acting within the scope of their employment and authority in such a manner as to knowingly cause injury to Plaintiff.

39. That on or about December 5, 2011, CITY, YANEZ, CAMERON, their agents, servants and employees, acting as agents and on behalf of the CITY, YANEZ, and CAMERON, and within the scope of their employment, did intentionally, willfully and maliciously assault and batter the Plaintiff **ERICK TAVAREZ**, insofar as they have the real and/or apparent ability to cause imminent harmful and/or offensive bodily contact, and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiff **ERICK TAVAREZ**, and their act caused an apprehension of such contact in the Plaintiff, and in a hostile and/or offensive manner touched and beat the Plaintiff and/or caused offensive bodily contact to the Plaintiff **ERICK TAVAREZ**, and caused such battery on and about his head, neck, back, body and limbs.

40. That by reason of the aforesaid intentional assault and battery, which was committed in an excessive manner, with excessive force and without legal justification or privilege by the defendants, their agents, servants and employees, who were acting within the scope of their employment and authority, and without any probable or reasonable cause, Plaintiff **ERICK TAVAREZ** suffered severe and permanent bodily injury on and about his head, neck, back, body and limbs and was rendered sick, sore, and disabled, and suffered conscious pain and suffering, and that he was otherwise damaged.

41. That as a result of the aforesaid assault and battery, the Plaintiff **ERICK TAVAREZ** was caused to sustain serious, severe, painful and permanent bodily injuries, so that

he was rendered sick, sore, lame and disabled and so remains, and was and will be compelled to seek medical aid and attention and incur expenses for same in an endeavor to cure himself of said injuries, and he was and will be prevented from attending his usual occupation and duties.

42. That at all times hereinafter mentioned, the actions of CITY, YANEZ, and CAMERON, as described above, were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

43. That by reason of the foregoing, Plaintiff **ERICK TAVAREZ** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

**AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF ERICK
TAVAREZ**

44. Plaintiff **ERICK TAVAREZ** repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "43" with the same force and effect as if fully set forth at length herein.

45. That CITY, its agents, servants and employees were negligent, careless and reckless in hiring, retaining, training, monitoring, retraining, supervising and promoting its employees including, but not limited to YANEZ and CAMERON insofar as the foregoing police officers, as employees of CITY, were not qualified to be hired, retained or promoted as police officers, and lacked the experience, skill, training and ability to be employed, retained and utilized in the manner that each were and are employed by CITY.

46. That CITY failed to exercise due care and caution in its hiring, retaining, training and/or promoting practices insofar as CITY and failed to adequately test, analyze test results and/or investigate the above-referenced police officers' backgrounds and performances.

47. That CITY failed to exercise due care and caution in its hiring, retaining, training and/or promoting practices insofar as CITY and failed to adequately screen the above-referenced

police officers, failed to adequately monitor said police officers and failed to adequately discipline said police officers when they violated Patrol Guidelines.

48. Defendant CITY was also negligent in that prior to, and at the time of, the acts complained of herein, due to the prior history of the police officer defendants named herein, knew or should have known of the bad disposition of said defendants, or, at the very least, had knowledge of facts that would have put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that defendant police officers were not suitable to be hired and employed by CITY, and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals, nor use excessive force during the arrest process.

49. That by reason of the above, the Plaintiff **ERICK TAVAREZ** was injured in mind and body as he was arrested and prosecuted, and rendered sick, sore and damaged.

50. That at all times hereinafter mentioned, the actions of CITY and all defendants herein, as described above, were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

51. That by reason of the foregoing, Plaintiff **ERICK TAVAREZ** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

**AS AND FOR A FIFTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF ERICK
TAVAREZ**

52. Plaintiff **ERICK TAVAREZ** repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "51" with the same force and effect as if fully set forth at length herein.

53. In arresting Plaintiff **ERICK TAVAREZ**, police officers including, but not limited to YANEZ and CAMERON, acting in their capacity as agents, servants and employees of CITY,

were motivated by an ulterior motive to do harm, without justification or economic or social excuse.

54. In arresting Plaintiff **ERICK TAVAREZ**, police officers including, but not limited, to YANEZ and CAMERON, acting in their capacity as agents, servants and employees of CITY, sought either a detriment to Plaintiff **ERICK TAVAREZ** or a collateral advantage to the CITY that is outside the legitimate ends of effectuating an arrest.

55. As a result of the abuse of process by defendants herein, Plaintiff **ERICK TAVAREZ** sustained multiple injuries including, but not limited to, loss of liberty, emotional distress, humiliation, intimidation, loss of enjoyment of life, and fear for his safety.

56. That at all times hereinafter mentioned, the actions of CITY and all defendants herein, as described above, were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

57. That by reason of the foregoing, Plaintiff **ERICK TAVAREZ** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

**AS AND FOR A SIXTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF ERICK
TAVAREZ**

58. Plaintiff **ERICK TAVAREZ** repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "57" with the same force and effect as if fully set forth at length herein.

59. At all times mentioned herein and above, defendant CITY employed YANEZ and CAMERON as police officers and the named defendants were acting under color of law, to wit: the statutes, ordinances and regulations, policies and customs and usage of the State of New York and/or City of New York.

60. Plaintiff **ERICK TAVAREZ** is and was at all times relevant herein, a citizen of the United States and a resident of Kings County in the State of New York, and brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.

61. That on or about December 5, 2011, defendants CITY, YANEZ, and CAMERON, without probable cause, reasonable cause or legal justification, and while effectuating the seizure of Plaintiff **ERICK TAVAREZ**, did search, seize, assault and commit a battery and grab the Plaintiff **ERICK TAVAREZ** without a court authorized arrest warrant or search warrant, and defendants did physically seize Plaintiff **ERICK TAVAREZ** during the arrest process in an unlawful and excessive manner Plaintiff **ERICK TAVAREZ** was falsely arrested and unlawfully imprisoned, and, as a result of defendants' conduct, maliciously prosecuted without the defendants possessing probable cause, reasonable cause or legal justification to do so.

62. The above actions of defendants CITY, YANEZ, and CAMERON resulted in Plaintiff **ERICK TAVAREZ** being deprived of the following rights under the United States Constitution: (a) Freedom from assault to his person; (b) Freedom from battery to his person; (c) Freedom from illegal search and seizure; (d) Freedom from false arrest; (e) Freedom from malicious prosecution; (f) Freedom from the use of excessive force during the arrest process; and (g) The right to Due Process of Law.

63. In addition to the above, defendants CITY has, as a matter of policy, custom and practice, and with deliberate indifference, failed to adequately train, monitor, supervise, discipline, sanction or otherwise direct its police officers, including the officers involved in this case, and any and all unnamed officers involved in the unlawful seizure and arrest of Plaintiff, regarding the protection of the constitutional rights of citizens.

64. Defendants CITY, YANEZ, and CAMERON subjected Plaintiff **ERICK TAVAREZ** to such deprivation in a malicious, reckless, deliberate, intentional and grossly negligent manner and with a callous disregard of Plaintiff **ERICK TAVAREZ**'s rights, and with deliberate indifference to those rights under the Fourth, Fifth, Sixth, Fourteenth and all other related Amendments to the United States Constitution.

65. The direct and proximate result of the defendants CITY's, YANEZ'S, and CAMERON's conduct are that Plaintiff **ERICK TAVAREZ** has suffered severe and permanent injuries and a loss of liberty and companionship, and has been forced to endure pain and suffering, emotional distress and severe and significant damage to his standing and reputation in the community.

66. That by reason of the foregoing, Plaintiff **ERICK TAVAREZ** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state

WHEREFORE, the Plaintiff **ERICK TAVAREZ** demands judgment against the defendants on the First Cause of Action through the Sixth Cause of Action in a sum that exceeds the jurisdictional limits of all lower trial courts of this state for each cause of action, all together with attorney's fees, punitive damages and the costs and disbursements of this action.

Dated: Bronx, New York
August 16, 2019



THE BAGLEY FIRM, P.C.
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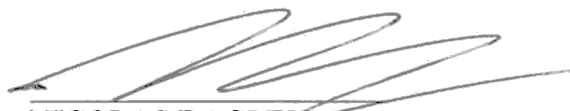
ATTORNEY'S VERIFICATION BY AFFIRMATION

NICOLAS BAGLEY, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a member of THE BAGLEY FIRM, P.C., attorneys of record for plaintiff. I have read the annexed VERIFIED COMPLAINT and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason I make the foregoing affirmation instead of the plaintiff is because plaintiff is currently outside of the county wherein your affirmant maintain an office.

Dated: Bronx, New York
August 16, 2019


NICOLAS BAGLEY